

25NWLC44172 25NWLC44172

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-24

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Case Number: 25NWLC44172 Hearing Date: September 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Belinda Maturo

dba Perfect Pointe School of Dance's Motion to Compel Further Responses and for Production of Documents in Response to Request for Production of Documents, Set One; for Monetary Sanctions is granted.

Defendant Raquel K. Hernandez

is ordered to serve supplemental responses to Request for Production of Documents, Set One, Nos. 1-5, without objections, within 20 days' notice of this order. Defendant Raquel K. Hernandez is also ordered to pay sanctions of \$2,060.00 to Plaintiff's counsel within 20 days' notice of this order.

Analysis:

On August 7, 2025, Plaintiff Belinda Maturo dba Perfect Pointe School of Dance ("Plaintiff") filed the Complaint in this action against Defendant Raquel K. Hernandez ("Defendant"). The Complaint alleges causes of action for breach of contract and common counts. Defendant filed an Answer in propria persona on October 3, 2025.

On January 26, 2026, Plaintiff filed the instant Motion to Compel Further Responses and for Production of Documents in Response to Request for Production of Documents, Set One; for Monetary Sanctions. Plaintiff served Defendant with the Motion on the same day by first-class mail. Following re-assignment of this action to the Limited Civil Non-Collections Hub, the

hearing on the instant Motion was set for September 24, 2026 in Department 26 of the Spring Street Courthouse. (Minute Order, 07/08/26.) Plaintiff gave notice of the ruling on the same day. No opposition has been filed to date.

Discussion

Procedural

Requirements

Notice of the

motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).) This time is extended based on the manner of service; service by mail extends the deadline by five days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant served a response to the Request for Production of Documents, Set One, on December 4, 2025. (Motion, Spielfogel Decl., ¶4 and Exh. 2.) 45 days after December 4, 2025 was January 18, 2026. An additional five calendar days made the deadline to file the instant Motion January 23, 2026. The instant Motion was timely served on Defendant on January 22, 2026. (Motion, p. 47.)

Second, California

Rules of Court Rule 3.1345 requires all motions or responses involving further discovery to include a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a).) Alternatively, “the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).) The Motion is accompanied by a separately filed separate statement.

Finally, the motion must

be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Plaintiff’s counsel sent a meet and confer letter to Defendant on December 16, 2025, to which Defendant responded that she would “send what I have by the end of the week.” (Motion, Spielfogel Decl., ¶¶5-6 and Exhs. 3-4.) On January 19, 2026, Defendant emailed Plaintiff to say that she did not know how to respond. (Id. at ¶7 and Exh. 5.) Plaintiff’s counsel communicated to Defendant that unless supplemental responses were served, they

would have to file a motion to compel further responses. (Id. at ¶8 and Exh. 6.) Defendant did not respond to that email but did respond to Special Interrogatories, Set One, by identifying documents and communications she had not produced. (Id. at ¶9 and Exhs. 7-8.) This exchange demonstrates that Plaintiff's counsel sought to communicate the deficiencies in Defendant's responses, but was unable to reach an agreement with Defendant regarding production of further responses. The meet and confer requirement is satisfied.

Request for
Production of Documents, Set One, Nos. 1-5

A motion requesting an order compelling further responses to a demand for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. (Code of Civ. Proc., § 2031.310, subd. (b)(1).) If good cause is shown, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) "[T]he party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance." (Ibid. [citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2001) Discovery, ¶¶ 8:1495 to 8:1495.10, pp. 8H 24 to 8H 26]. Upon a fact-specific showing of relevance, the burden shifts to the responding party to justify its objections. (Ibid.)

The Motion argues that good cause exists with respect to the requests for production of documents relating to the obligation at issue and Defendant's payments thereunder. It also argues that the requests seek communications between the parties that might lead to the discovery of admissible evidence. A response to a request for production of documents must either be:

(1)

A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities.

(2)

A representation that the party lacks the ability to comply with the demand for

inspection, copying, testing, or sampling of a particular item or category of item.

(3)

An objection to the particular demand for inspection, copying, testing, or sampling.

(Code Civ. Proc., § 2031.210, subd. (a).) Plaintiff moves for further responses on the grounds that Defendant's statements do not comply with the first two types of responses, and that any objection asserted is without merit. (Citing Code of Civ. Proc., § 2031.310, subd. (a).)

Defendant asserted general objections to all the requests for production, which the Court agrees are improper because they do not refer to the specific requests to which they apply and generically refer to privacy, ambiguity, relevance, and misleading facts. (Motion, Spielfogel Decl., Exh. 2, p. 1.) Why any particular request is subject to these objections is not identified in Defendant's response. (Ibid.)

Request No.1 asks Defendant to "produce all DOCUMENTS identified in YOUR response to Special Interrogatories, Set One, served concurrently herewith." Request No. 2 similarly asks Defendant to produce all such communications. In response, Defendant denied that any documents or communications were identified. However, Defendant did identify documents in response to Special Interrogatories, Set One, Nos. 3 and 6. (Motion, Spielfogel Decl., ¶9 and Exhs. 7-8.) Plaintiff, therefore, is entitled to production of the identified documents, as her representation that she lacks the ability to comply is clearly contradicted.

Requests Nos. 3 and 4 ask Defendant to "produce all DOCUMENTS that in any way reflect payments YOU made to PLAINTIFF from July 24, 2023, to the date of this request for production" and all related documents. Defendant responded by citing the general objections and that Plaintiff has all the documents. Finally, Request No. 5 asks Defendant to produce all documents that relate to the contract at issue. Defendant again responded by objecting generally and stating that Plaintiff has the documents. As explained above, this is not a proper response under Code of Civil Procedure section 2031.210 because it does not state that Defendant will comply with the demands, cannot comply with the demands, nor assert a proper objection.

Plaintiff is entitled to a further response to these requests.

Based on the foregoing, Plaintiff is entitled to further responses to Request Nos. 1-5, without objections. Plaintiff is also entitled to an award of sanctions pursuant to Code of Civil Procedure section 2031.310, subdivision (h). The Court finds the amount sought based on time invested is excessive given the lack of any opposition and counsel's ability to appear for the hearing remotely. Sanctions are awarded in the amount of \$1,560.00 based on four hours of attorney time billed at \$500.00 per hour, plus \$60.00 in costs. (Motion, Spielfogel Decl., ¶11.)

Conclusion

Plaintiff Belinda Maturo dba Perfect Pointe School of Dance's Motion to Compel Further Responses and for Production of Documents in Response to Request for Production of Documents, Set One; for Monetary Sanctions is granted.

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Moving party to give notice.